

ומשֶׁהָ: (שמות י"טג') מַתָּן תוֹרָה which discusses the words of מדרש שמות ב' פסוקים. The מדרש is well known, but its ramifications are not as well-known. And we shall start: אָמְרוּ מִלֵּאכֵי הַשָּׁמַיִם - at the time that משה רבינו went up on higher spheres; What is a human being doing here amongst us, the celestial beings, beings of perfection? (A יְלוּד אֱשָׁה represents a person with all of his חסרונות, his יצר הרע and יצר הטוב, and all of his various defects which all people, not only are prone to, but actually have.) - he came לקבל תורה בא - מלאכים Hakodosh Baruch Hu answered the question: אָמְרוּ לִפְנֵינוּ - they said "The torah, which was established for 974 generations before We disagree; leave the torah here. We want it to remain with us." Hashem gave them a very cryptic answer: Hashem told Moshe "You answer them." אָמְרוּ לוֹ הַקְדוּשׁ בְּרוּךְ הוּא לְמַשָּׂחָה: הַחֲזִיר לָהֶן תְּשׁוּבָה responded with an equally puzzling reply: אָמְרוּ לִפְנֵינוּ - I'm afraid to answer the מלאכים, I'm afraid they'll burn me up with their breath that's within their mouths. אָמְרוּ לוֹ: אַחֲזוּ בְכֶסֶף כְּבוֹדִי וְחֲזֹר לָהֶן תְּשׁוּבָה - Hashem told him, "Hold on to the כיסא הכבוד and return them an answer." Like a סגולה, a token, a trinket, a talisman – hold on, and respond. And the שקלא וטריא continued. משה רבינו said to them: "The torah says we were in מצרים. Were you in מצרים? It says אמך ואבך ואת אישך. Do you have parents?" And he went through all the various מצוות of the torah which are clearly only שייך דברים. And with this, he was able to defeat them.

The sefer **החדש התורה**, quoted by R' Blum ע"ה, asks: What was the **טענה**'s **מלאכים**? The **גמרא** doesn't specify what their argument was; it just says they didn't want to give the torah to people. All the **מפרשים** discuss this. It's difficult to understand their claim, because the torah was clearly designed for human beings. What was **טענה**'s **מלאכים** ?

The טענה was a very simple one. There were two options over here. There's an option to leave the torah with the מלאכים who would only be מקיים those parts of the torah that they are able to, but they would do so perfectly, or it can be given to people, who will fulfill it to the best of their imperfect abilities. No person can do the entire תורה. And we know that we often fail in fulfilling the מצות of both הקדוש ברוך. A person's נטיה is to do עבירות and not to keep the תורה. So when Moshe said to them - הַתְּזִיר לָקוֹן תְּשׁוּבָה - give them an answer, the word תשובה not only means give them an answer, but give the מלאכים the תירוץ that we can utilize תשובה to defeat the מלאכים in their טענה. The ability to do תשובה allows us to be מכפר on all of our עבירות, and a person can be considered as if he kept the torah with perfection. But משה רבינו said, "No, I can't do that, שָׂמָא יֵשְׁרָפוּנִי בְּהֶלֱ שְׂפִיפִיהֶם, - I'm afraid that they're going to burn me up with the הבל שבפייהם," which means what? מלאכים are on a higher מדרגה. They don't have any עבירות. And that is the הבל שבפייהם, that their perfection is their complete רוחניות and spirituality. So הקדוש ברוך answered him, אַחֲזוּ בְכֶסֶף כְּבוֹדִי, as it says in גדולה תשובה, מסכת יומא, ג' דף ק"ט, א' - שמגיע עד כסף הכבוד המלאכים.

Rabbi Oelbaum recently discussed this very point and made a very interesting comment. He said the **הקדוש ברוך הוא** is **מלאכים** surrounded by **שמים**, but there's a little space between **הקדוש ברוך הוא** and the **מלאכים**. And that little space, right next to the **כיסא הכבוד**, is off-limits to the **מלאכים**. Who can go there? A human being has the ability if he works hard enough.

So this answers most of our questions, but there's only one problem. The מלאכים did not agree with this טענה, with this argument that בעלי תשובה are on a higher מדרגה. In their view, any person who has done an עבירה cannot possibly be on the same level as someone who's spotless, who's flawless, whose record is clean as a whistle, had no עבירות at all. And Moshe didn't have a real answer to this, until we come to the פסוק that gives us the final answer. We have beings that have never sinned. Their record is spotless. And who are they? תינוקות של בית רבן. The קינדערלאך, תשב"ר. All of our little קינדערלאך, each and every one of them, are on a higher מדרגה, because they are without חטא. So we have both: we have the concept of תשובה, and we also have the חטא שאין בו חטא, we have those קינדערלאך who are giving us the ability to



accept the torah. And as it says in the pasuk, (תהילים ח"ג), מִפִּי עוֹלָלִים וְיִנְקִיָּם יִסְדָּתָּ עוֹ. It was only in the זכות of those little קינדערלאך that were able to get the torah, not in the זכות of the אבות, not in the זכות of our מצות, not in the זכות of our תורה or even of our גמילות חסדים. It was in the זכות of the תינוקות של בית רבן. All of our קינדערלאך - they should all live and be well and געזונט - are what gave us the ability to get the תורה at הר סיני and for the דורות.

